

		Second, because the Court’s application of equitable estoppel is based on the <i>CBC</i> arbitration agreement and not any part of the <i>Workway</i> arbitration agreement, it does not follow that the Court must also consider the terms of the <i>Workway</i> arbitration agreement in determining whether the <i>CBC</i> arbitration agreement is enforceable. Plaintiff generally contends that Civil Code section 1642 requires the court to construe together “[s]everal contracts relating to the same matters, between the same parties, and made as parts of substantially one transaction.” (Opp., p. 9.) However, section 1642 has no applicability where the relevant “agreements were separately negotiated . . . between [plaintiff] and different entities,” and the agreements were executed at different times. (<i>Parker v. McCaw</i> (2005) 125 Cal.App.4th 1494, 1507-1508.) Therefore, the Court declines to read the CBC arbitration agreement together with the Workway arbitration agreement and declines to import the confidentiality provision from the Workway agreement into the CBC arbitration agreement. Accordingly, the CBC arbitration agreement remains enforceable and not unconscionable based upon the reasons articulated in the Court’s 1/22/2026 order granting CBC’s motion to compel arbitration. (ROA #71.) In sum, the Court finds that the CBC arbitration is enforceable, is not unconscionable, and is applicable to Plaintiff’s claims against Workway under equitable estoppel principles because Plaintiff alleges that CBC and Workway are joint employers. Plaintiff is therefore ORDERED to arbitrate her individual claims against Workway, and her class claims against Workway are hereby DISMISSED. Plaintiff’s case against Workway is otherwise STAYED until the arbitration is had pursuant to Code of Civil Procedure section 1281.4. Moving party shall give notice.
107	Padilla vs. Connect Staffing Inc. 2025-01524286	1.Motion to Compel Arbitration 2. Joinder 3. Case Management Conference CONTINUED PER STIP